

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DASHAY DANIELS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
POLICE OFFICER MATHEW ST. DENIS,
SHIELD NO.: 5316 AND OTHER
UNNAMED POLICE OFFICERS,

Defendant.

SUMMONS

Index No.:

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: October 31, 2013
Defendants' address: 1 Police Plaza
New York, NY

ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$2,000,000.00 with interest from June 29, 2012 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DASHAY DANIELS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
POLICE OFFICER MATHEW ST. DENIS,
SHIELD NO.: 5316 AND OTHER
UNNAMED POLICE OFFICERS,

Defendant.

VERIFIED COMPLAINT

Index No.:

Plaintiffs by their attorney, Elliot H. Fuld, complain of the defendants and allege,
upon information and belief as follows:

1. DASHAY DANIELS was, at the times of the incident described in this Complaint, a resident of the City and State of New York, County of New York..
2. POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS were at all times stated herein and upon information and belief, police officers with the New York City Police Department.
3. That at all times stated herein, POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers were acting within the scope of their employment with the New York City Police Department.

4. That at all times stated herein, POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about November 29, 2012, POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers forcibly seized and detained the Plaintiff in the area of 55 West 110th Street in New York County.

7. After detaining the Plaintiff DASHAY DANIELS for several hours, POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers formally arrested Plaintiff.

8. POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers accused and charged Plaintiff

with the following crimes alleged to have occurred on November 29, 2012:

- a. Attempted Assault in the Third Degree
- c. Assault in the Second degree.

9. At the time of the arrest and detention POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers who were present were aware that Plaintiff DASHAY DANIELS did not commit those crimes.

11. At the time of the arrest and detention POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and other police officers who were present should have been aware that Plaintiff DASHAY DANIELS did not commit those crimes.

10. The detention, arrest and imprisonment of Plaintiff JOSHUA GARCIA by POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS and the filing of criminal charges were without probable cause and without basis in law or in fact.

11. On January 23, 2013, all criminal charges against Plaintiff stemming from the arrest on November 29, 2012 were dismissed upon motion of the New York County District Attorney.

12. On January 25, 2013 a Notice of Claim was served upon the Office of the Comptroller of the City of New York.

14. That on March 25, 2013, Plaintiff DASHAY DANIELS was examined, under oath, by a representative of the Defendants pursuant to General Municipal Law §50-h.

15. That more than thirty (30) days have elapsed since the filing and service of that Claim and since the oral examination of Plaintiff and the adjustment or payment thereof has been neglected or refused.

16. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

17. As a result of the false arrest of Plaintiff DASHAY DANIELS by Defendants, Plaintiff DASHAY DANIELS demands judgment against the Defendants in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiffs repeats all the allegations contained in paragraphs "1" through "17" inclusive as though more fully set forth herein.

19. As a result of Defendants' actions, Plaintiff DASHAY DANIELS was falsely imprisoned from November 29, 2013 through and including December 5, 2012.

20. That at the time of Plaintiff's imprisonment, Defendants, their agents, servants and/or employees knew that Plaintiff should not have been incarcerated.

21. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiff's release.

22. That as a result of Defendants' action, Plaintiff DASHAY DANIELS was compelled to, *inter alia*, lose employment and earning potential.

23. In view of the foregoing, Plaintiff DASHAY DANIELS has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

24. Plaintiffs repeats all the allegations contained in paragraphs "1" through "23" inclusive as though more fully set forth herein.

25. After Plaintiff's false arrest on or about November 29, 2012, Plaintiff DASHAY DANIELS was required to appear in Kings County Criminal Court on two (2) separate occasions.

26. That during the pendency of those charges, the Defendants were aware that Plaintiff DASHAY DANIELS had not committed any of the charges crimes alleged to have been committed on or about November 29, 2012.

27. That during the pendency of those charges, the Defendants failed to find any physical evidence connecting Plaintiff DASHAY DANIELS to any of the charged crimes.

28. That during the pendency of those charges, the Defendants failed to locate any witnesses who identified Plaintiff DASHAY DANIELS as the perpetrator of any of the charged crimes.

29. That during the pendency of those charges, the Defendants failed to conduct a "lineup" procedure for the alleged victim to view.

30. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiff DASHAY DANIELS.

31. Defendants did not at any time present any evidence regarding the charged crimes to the Kings County Grand Jury.

32. The Defendants' prosecution of Plaintiff DASHAY DANIELS was conducted with malice.

33. Prior to, during and after the arrest of Plaintiff DASHAY DANIELS, the conduct of THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MATHEW ST. DENIS, SHIELD NO.: 5316 AND OTHER UNNAMED POLICE OFFICERS in their investigation, deviated so drastically from proper police activity as to demonstrate an intentional or reckless disregard for proper procedures.

34. The Defendants' prosecution of Plaintiff DASHAY DANIELS was conducted with such reckless disregard for the true set of facts that said reckless disregard constituted malice.

35. In view of the foregoing, Plaintiff JOSHUA GARCIA has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

36. Plaintiffs repeat all the statements contained in paragraphs "1" through "35" as though more fully set forth herein.

37. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

38. In performing that acts as aforesaid, the Defendants deprived Plaintiff of his civil and

constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

39. Specifically, the CITY OF NEW YORK and the individual Defendants permitted practices and procedures whereby arrests were sanctioned based upon little or no evidence in the hopes that sufficient evidence to justify an arrest and imprisonment could be discovered after the fact.

40. Such practices and procedures constituted a policy or decision officially adopted and promulgated by the Defendants.

41. In the alternative, such practices and procedures of the defendants were so permanent and well settled as to be equated with a custom or usage with the force of law.

42. In the alternative, the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT failed to properly train its individual police officers concerning the necessary quantum and quality of evidence required to justify an arrest.

43. Said failure amounts to a deliberated indifference to the rights of persons, such as Plaintiff DASHAY DANIELS, with whom the police come into contact.

44. Said civil rights violations resulted in Plaintiff DASHAY DANIELS being falsely arrested, falsely imprisoned, maliciously prosecuted and otherwise damaged physically,

mentally and emotionally.

45. As a result of the foregoing civil rights violations, the Plaintiff DASHAY DANIELS has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

WHEREFORE, Plaintiff demands of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
- b. On the Second Cause of Action, the sum of \$2,000,000.00; and
- c. On the Third Cause of Action, the sum of \$2,000,000.00; and
- d. On the Fourth Cause of Action, the sum of \$2,000,000.00
- e. For punitive damages in the amount of \$1,000,000.00.

Dated: October 31, 2013

Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, being duly sworn, deposes and says:

I am the attorney for the Plaintiff herein, and I verify that all the statements contained in the attached Complaint have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiffs and, upon information and belief, are true. This Verification is made by me because the individual Plaintiffs do not reside in the County wherein I maintain my office.

Dated: October 31, 2013

ELLIOT H. FULD

ELLIOT H. FULD

Duly sworn to this 31st day
of October, 2013
